

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

FILED
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U.S. DISTRICT COURT E.D.N.Y.

★ JUN 12 2009 ★

ORIGINAL

BROOKLYN OFFICE

NYA WALKER,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE WALIUR
RAHMAN, shield # 6428, POLICE OFFICERS JOHN
DOES 1-5,

Jury Trial Demanded

GARAUFIS, J.

Defendants.

x

PRELIMINARY STATEMENT

LEVY M.

1. This is an action brought pursuant to 42 U.S.C. § 1983 alleging civil rights violations by the City of New York and New York City Police Officers. Plaintiff alleges that, on June 18, 2008, NYPD officers of the Brooklyn North Narcotics Division arrested her without cause, used excessive force on her, stole her property, and presented false evidence against her in violation of the Fourth, Sixth and Fourteenth Amendments to the United States Constitution. Plaintiff seeks compensatory and punitive damages, attorney's fees and costs, and such other and further relief as the court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and the Fourth, Sixth and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343.

3. Plaintiff invokes the supplemental jurisdiction of this Court pursuant to 28 U.S.C. § 1367 to hear and decide her claims brought under New York state law. A notice of claim was duly filed with the City of New York within 30 days after the arrest of plaintiff, more

than 30 days have elapsed since such filing and the City has not made an offer to settle plaintiff's state law claims.

4. Venue is proper in the Eastern District of New York pursuant to 28 U.S.C. § 1391(b) and (c).

PARTIES

5. Plaintiff is a resident of the State of New York, County of Kings.

6. The City of New York is a municipal corporation organized under the laws of the State of New York.

7. Detective Waliur Rahman and John Does 1-5 are members of the NYPD's Brooklyn North Narcotics Division. These officers were acting under color of state law and in their capacities as NYPD officers at all relevant times herein. The officers are liable for directly participating in the unlawful acts described herein and for failing to intervene to protect plaintiff from unconstitutional conduct. The officers are sued in their individual capacities.

STATEMENT OF FACTS

8. On or about June 18, 2008, at approximately 6:00 p.m., plaintiff, who had recently left work, was walking in the area of Washington Avenue and Underhill Avenue in Brooklyn, New York, heading to her home.

9. On or about June 18, 2008, at approximately 6:00 p.m., and in the vicinity of the aforesaid location, plaintiff met her neighbor Rayshun Nunez.

10. Plaintiff and Nunez had a conversation and, thereafter, proceeded to walk together to a grocery store located in the area of Prospect Place between Washington Avenue and Underhill Avenue.

11. Plaintiff entered the grocery store to purchase cigarettes.

12. While inside the grocery store, plaintiff observed two men dressed in plain clothes, later identified as police officers, seize Mr. Nunez who was standing at the entrance to the store.

13. Plaintiff approached the officers and asked why they had seized Mr. Nunez.

14. In response, the officers told plaintiff that they needed to see Mr. Nunez' identification, which Mr. Nunez stated was at his home located at 358 Park Place, Brooklyn, New York.

15. Plaintiff asked the officers to allow Mr. Nunez to get his identification from his home.

16. The officers escorted plaintiff and Mr. Nunez to Nunez' home at the aforesaid location.

17. Mr. Nunez entered his home with one officer, while plaintiff stood outside the location with the second officer.

18. After a few moments, the second officer escorted plaintiff into the building to join the first officer and Mr. Nunez.

19. While inside of 358 Park Place, the first officer stated that he detected the smell of marihuana.

20. The officer radioed for assistance and within minutes a team of back up officers arrived on the scene.

21. The officers handcuffed Mr. Nunez and informed plaintiff that all occupants of the apartment were under arrest.

22. Plaintiff had no knowledge of contraband, if any, recovered in the apartment.

23. Plaintiff entered the apartment escorted by an officer, and not of her own free will.

24. Plaintiff attempted to use her cell phone to telephone Mr. Nunez' mother about the incident.

25. One of the officers approached plaintiff, seized her cell phone, refused to return it, and refused to issue a voucher or receipt to plaintiff.

26. The officers handcuffed plaintiff excessively tight, causing plaintiff's wrists to bruise and her fingers to become numb.

27. Plaintiff was escorted out of the house and paraded in handcuffs before her family members and members of the community.

28. Plaintiff was forced into a police van and transported to a NYPD precinct.

29. At the precinct, the officers did not give plaintiff water or food and refused plaintiff's numerous requests to use the bathroom, before finally allowing plaintiff to use the facilities.

30. Plaintiff was subjected to a strip search at the precinct.

31. While plaintiff was incarcerated in the precinct, Detective Waliur Rahman, in accordance with a conspiracy with the other arresting officers, prepared police reports which falsely stated that plaintiff obstructed governmental administration, resisted arrest, and harassed Detective Waliur Rahman by spitting at the Detective, fighting, and flailing plaintiff's arms while the Detective attempted arrest other individuals

32. On or about June 19, 2008, at approximately 6:00 a.m., officers took plaintiff to Brooklyn Central Booking.

33. Plaintiff was incarcerated under unconstitutional conditions in Brooklyn Central Booking.

34. The cells in which plaintiff was incarcerated were severely overcrowded, filled with garbage and human excrement, and infested with cockroaches and rodents.

35. The cells in central booking lacked clean and functioning toilets.

36. While plaintiff was confined in Brooklyn Central Booking, Detective Waliur Rahman, in accordance with a conspiracy with the other arresting officers, misrepresented to the District Attorney's Office that plaintiff obstructed governmental administration, resisted arrest, and harassed Detective Waliur Rahman by spitting at the Detective, fighting, and flailing plaintiff's arms while the Detective attempted arrest other individuals.

37. On or about June 20, 2008, at approximately 1:00 a.m., plaintiff was arraigned in Criminal Court, Kings County.

38. On or about June 20, 2008, the criminal charges filed against plaintiff were adjourned in contemplation of dismissal.

39. Thereafter, the charges against plaintiff were dismissed and sealed.

40. Plaintiff suffered damage as a result of defendants' actions. Plaintiff suffered a loss of liberty, emotional distress, mental anguish, fear, anxiety, humiliation, damage to reputation, and loss of wages. Plaintiff also suffered pain and bruising from the excessively tight handcuffs. Moreover, plaintiff's property was stolen as described above.

**PLAINTIFF'S FEDERAL CLAIMS AGAINST
DETECTIVE WALIUR RAHMAN AND
POLICE OFFICERS JOHN DOES 1-5**

41. Plaintiff repeats the foregoing allegations.

42. The conduct of Detective Waliur Rahman and Police Officers John Does 1-5, as described herein, amounted to false arrest, excessive force and fabrication of evidence in violation of 42 U.S.C. § 1983 and the Fourth, Sixth and Fourteenth Amendments to the United States Constitution.

**PLAINTIFF'S FEDERAL CLAIM AGAINST
THE CITY OF NEW YORK**

43. Plaintiff repeats the foregoing allegations.

44. The City of New York, through a police, practice and custom, directly caused the constitutional violations suffered by plaintiff.

45. Upon information and belief, the City of New York, at all relevant times, was aware from notices of claim, lawsuits, complaints filed with the City, and from the City's own observations that the officers involved in this case are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

46. Nevertheless, the City of New York exercised deliberate indifference by failing to take remedial action.

47. The City failed to properly train, retrain, supervise, discipline, and monitor the officers and improperly retained and utilized them.

48. Moreover, upon information and belief, the City of New York failed to adequately investigate prior complaints filed against the officers.

49. The aforesaid conduct by the City of New York violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Sixth and Fourteenth Amendments to the United States Constitution.

**PLAINTIFF'S STATE LAW CLAIMS
AGAINST DETECTIVE WALIUR RAHMAN
AND POLICE OFFICERS JOHN DOES 1-5**

50. Plaintiff repeats the foregoing allegations.

51. The conduct of Detective Waliur Rahman and Police Officers John Does 1-5, as described herein, amounted to false arrest, assault, battery, theft, conversion, and vandalism in violation of New York state law.

**PLAINTIFF'S STATE LAW CLAIMS
AGAINST THE CITY OF NEW YORK**

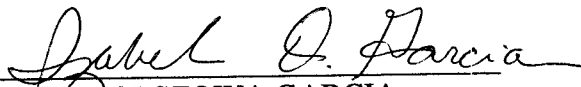
52. Plaintiff repeats the foregoing allegations.

53. Because Detective Waliur Rahman and John Does 1-5 were acting within the scope of their employment as members of the NYPD during the incident in question, the City of New York is vicariously liable under state law for false arrest, assault, battery, theft, conversion, and vandalism.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Attorney's fees and costs;
- d. Such other and further relief as this Court may deem just and proper.

DATED: June 10, 2009
Brooklyn, New York


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